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ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS' **MEMORANDUM IN OPPOSITION TO** DEFENDANT/COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S **MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 423]** FILED AUGUST 19, 2026 [DKT. 431]; EXHIBIT "A"; CERTIFICATE OF SERVICE (NO NOTICE OF MOTION WAS FILED) Trial Dates: May 12, 2022, October 26-27, 2022, January 11-12, 2023, and April 5, 2023
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	

NIKODEM PIKOR,)
)
Third-Party Plaintiff,)
vs.)
)
THYSSENKRUPP ELEVATOR)
CORPORATION, a foreign profit)
corporation,)
Third-Party Defendant.)
_____)

COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS' **MEMORANDUM IN OPPOSITION TO** DEFENDANT/COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S **MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 423]** FILED AUGUST 19, 2026 [DKT. 431]

Counterclaim Plaintiff Nikodem Pikor ("**Pikor**") filed his motion for reconsideration, but failed to provide a notice of motion or a notice of hearing date with the motion in violation of Hawaii Rules of the District Court of the State of Hawaii Rule 7(a), which states in relevant part: "Every motion, except one entitled to be heard ex parte, shall be accompanied by a notice of hearing or of setting for hearing thereof." See also DCRCP appendix form DC 39 (form for non hearing motion which provides notice of motion); and form DC 41, which provides for a notice of hearing in the district courts form motion for reconsideration. There was no notice of hearing and no notice of motion for this motion for reconsideration.

Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS (hereafter "**AOAO**"), by and through its attorneys, Roeca Luria Shin, LLP, objects to the motion for reconsideration for its failure to provide a notice of hearing or notice of motion, but in an abundance of caution, and to avoid confusion on the AOAO's position, herein files its opposition to Pikor's Motion for

Reconsideration of Order Granting in Part and Denying in Part Motion for Attorneys' Fees and Costs [Dkt. 423] filed August 19, 2026 [Dkt. 431].

Pikor failed to timely file his notice of appeal from the June 23, 2026 final judgment, a jurisdictional defect in the appellate court. *See*, Dkt. 442 (Pikor's untimely motion to extend time to file the notice of appeal), and HRAP Rule 4(a)(1) (notice of appeal shall be filed "within 30 days after entry of the judgment or appealable order"). Not only was Pikor's motion to extend time to file the notice of appeal untimely filed, Pikor's Rule 60(b) motion was also untimely filed to qualify as a post-judgment tolling motion, having not been filed within 30 days of the June 23, 2026 final judgment [Dkt. 427]. Therefore this motion for reconsideration does not toll the time to file the notice of appeal.

More importantly, the June 27, 2024 motion for attorneys' fees and costs in this case [Dkt. 398] is not only NOT a "**post**-judgment" motion- being filed long before judgment was entered in this case; the June 15, 2026 order granting attorneys's fees and costs [Dkt. 423] was made pursuant to a rule that did not "specify the time by which the motion shall be filed"; and the motion was decided prior to entry of the judgment, and therefore it would not be a "post-judgment" motion subject to HRAP Rule 4(a)(3). [*See*, Dkt. 427]. The motion for statutory fees and costs under DCRCP Rule 7 and HRS § 514B-157 was both filed and decided before entry of judgment in this case. Therefore the limitations in HRAP Rule 4 do not apply in the facts of this case, and there is no basis for declaring the order granting attorneys' fees costs a "nullity".

1. <u>Relevant Facts</u>

Final Judgment was entered in this case on June 23, 2026. [Dkt. 427]. The motion for attorneys' fees and costs was a pre-judgment motion (not a post-judgment motion) which was filed June 27, **2024**. [Dkt. 398 (Motion)]. Not only was it filed pre-judgment, it was decided

pre-judgment. [Dkt. 423 (Order Granting Motion)]. The District Court certainly had jurisdiction, pre-judgment, to consider and decide the motion for attorneys' fees and costs. The order is not a nullity. The District Court did not lose jurisdiction because it took longer than 90 days to decide the motion for attorneys' fees and costs because there was no final judgment and no notice of appeal therefrom which would have removed jurisdiction from the District Court. Final judgment [Dkt. 425] was entered after the order awarding fees and costs was entered. [Dkt. 423].

2. HRAP Rule 4 and its Amendments

The current version of HRAP Rule 4 is part of the Hawai'i Rules of Appellate Procedure, and states in relevant part (with emphasis added):

> a) **Appeals** in civil cases.
> (1) Time for filing. When a civil appeal is permitted by law, the notice of appeal shall be filed within 30 days after entry of the judgment or appealable order. .....
>
> (2) Premature filing of appeal. If a notice of appeal is filed after announcement of a decision but before entry of the judgment or order, such notice shall be considered as filed immediately after the time the judgment or order becomes final for the purpose of appeal.
>
> (3) Time to appeal affected by **post-** judgment motions. If any party files a timely motion for judgment as a matter of law, to amend findings or make additional findings, for a new trial, to reconsider, alter or amend the judgment or order, or for attorney's fees or costs, **and** court or agency rules specify the time by which the motion shall be filed, then the time for filing the notice of appeal is **extended** for all parties until 30 days after entry of an order disposing of the motion. The presiding court or agency in which the motion was filed shall dispose of any such **post-**judgment motion by entering an order upon the record within 90 days after the date the motion was filed. If the court or agency fails to enter an order on the record, then, within 5 days after the 90th day, the clerk of the relevant court or agency shall notify the parties that, by operation of this Rule, the **post**-judgment motion is denied and that any orders entered thereafter shall be a nullity. The time of appeal shall run from the date of entry of the court or agency's order disposing of the **post-**judgment motion, if the order is entered within the 90 days, or from the filing date of the clerk's notice to the parties that the **post**-judgment motion is denied pursuant to the operation of the Rule.
>
> The notice of appeal shall be deemed to appeal the disposition of all **post**-judgment motions that are timely **filed after entry of the judgment** or order.

This rule has caused many issues over the years concerning which motions might be such a tolling motion under HRAP Rule 4(a)(3), and toll the time to file a timely notice of appeal.

The HRAP were passed in 1984 and became effective June 1, 1984. Mālama Kakanilua v. Director of Dept. of Public Works, 157 Hawai‘i 280, 299, 576 P.3d 793, 812 (2025). At that time tolling motions were discussed in HRAP rule 4(a)(4), and were listed by rule numbers (with motions for attorneys' fees and costs not included as a tolling motion in 1984). Id. and its n. 3.

The rules were amended in 1999, effective January 1, 2000, which moved tolling motions to HRAP Rule 4(a)(3), deleted reference to specific court rules for tolling motions, added motions for attorneys' fees and costs, set a "blanket ten-day filing requirement for the tolling motions", and added the requirement that the motion be disposed of "within 90 days" after filing, and a failure to do so "shall constitute a denial of the motion". Mālama, 157 Hawai‘i at 299-300, 576 P.3d at 812-813 ("Time to Appeal Affected by Post-Judgment Motions", stating that if, "not later than 10 days after entry of judgment any party files a motion that ... seeks attorneys' fees or costs, the time for filing the notice of appeal is extended until 30 days after entry of an order disposing of the motion", with n. 5 showing a Ramseyer version of the amended rule effective in 2000).

The rules were again amended in 2006, with an effective date of July 1, 2006, which removed the 10 day filing requirement, replacing it with a requirement of a "timely motion", removing motions to vacate from tolling motions, and adding motions for new trial, for JMOL and to amend findings or make additional findings. Mālama, 157 Hawai‘i at 300, 576 P.3d at 813 (with n. 8 showing a Ramseyer version of the amended rule effective in 2006). The Court noted that the "problem with the 'timely motion' language in the 2006 amendment to HRAP rule 4(a)(3) is that there are certain district court and family court rules pertaining to motions for costs

and attorneys' fees ... that do not specify a time to file such motions", citing DCRCP rule 54(d), and stating that it "posed the problem that such motions, filed long after a judgment or final order was entered, would still be 'timely' and thus could expand the time to appeal to unknown lengths of time." Mālama, 157 Hawai'i at 301, 576 P.3d at 814.

In Buscher v. Boning, 114 Hawai'i 202, 221, 159 P.3d 814, 833 (2007), the Court quoted the 2000 version of HRAP Rule 4(a)(3), held that the amended rule superseded prior cases which had held a trial court had no jurisdiction to award costs after a notice of appeal was filed, explicitly stating that "the court has 90 days to dispose of a postjudgment motion for costs, regardless of when the notice of appeal is filed." The Court found that while HRAP Rule 4(a)(3) did not consider the situation when a motion for costs is filed before the entry of judgment, it held that "**we will deem such motion filed immediately after the judgment becomes final for the purpose of calculating the 90-day period**". Id. (emphasis added).

In Buscher, the motion for costs was filed 10/25/04; the final judgment was entered 3/15/05 in the third circuit court; Defendants filed a notice of appeal on 4/12/05; and the order granting the motion for costs was filed 6/01/05. Buscher, 114 Hawai'i at 211, at 823. The Court held that the motion for costs was filed before the final judgment, and **it was decided before the expiration of 90 days after the entry of judgment**, and therefore **the order granting costs was valid,** and the notice of appeal filed prior to the entry of the order of costs "is deemed to appeal this disposition". Id. In Buscher, the court took more than 7 months to decide the motion for costs. The Court affirmed the grant of costs, for $20,002.82 (reducing only the costs for meals from the travel expenses request). Buscher, 114 Hawai'i at 224, 159 P.3d at 836.

In this case, the motion for fees and costs, and the decision awarding fees and cost were all entered before entry of final judgment, and are therefore valid. Thus, under Buscher, if the

motion was considered a "post-judgment motion" it would be deemed filed immediately after the final judgment. There is no void order, but instead a valid order in this case since 90 days after the judgment did not expire before the entry of the order granting statutory fees and costs.

In 2013 the Court decided Ass'n of Condo. Homeowners of Tropics at Waikele v. Sakuma, 131 Hawai'i 254, 255, 318 P.3d 94, 95 (2013), where the first circuit court entered a default judgment and a foreclosure decree, and Sakuma timely moved for reconsideration. The trial court did not rule on the post-judgment motion within 90 days, and 5 months after she filed the motion, she filed a notice of appeal which was dismissed as untimely by the ICA because the failure of the trial court to rule resulted in her motion being "deemed denied". Sakuma, at 256, 318 P.3d at 96. The Hawai'i Supreme Court reversed- finding appellate jurisdiction (and agreeing that the reconsideration was deemed denied) because no "order" denying the motion had been entered. Id.

A few years later in 2016, HRAP Rule 4 was amended to require the clerk to enter a notice that a motion was deemed denied if the trial court (or agency) did not do so, within 90 days. Cole v. City and County of Honolulu, 154 Hawai'i 28, 30 and 32, 543 P.3d 460, 462 and 464 (2024). In Mālama, the Court held that the 2016 amendments kept the "timely motion" language in HRAP Rule 4(a)(3), but added the requirement that the "court or agency rules specify the time by which the motion should be filed". Mālama, 157 Hawai'i at 301, 576 P.3d at 814 (emphasis added). Therefore, because the rules on which the motion for attorneys' fees and costs was based in this case did not "specify the time by which the motion should be filed" in the district court; and because the motion was filed and decided before entry of the judgment in this case, the motion is NOT a Rule 4(a)(3) post-judgment motion.

In Cole, the final judgment was entered 7/17/17 in the Tax Appeal court; a motion for reconsideration was filed 7/26/17; in December of 2022, the taxpayers asked the court to rule on their motion for reconsideration; and 3 days later the court entered an order denying the motion for reconsideration. Cole, 154 Hawai‘i at 29-30, 543 P.3d at 461-62. There was clearly a timely filed post-judgment motion which was not timely ruled upon. Thus, in Cole, neither the Tax Appeal court nor its clerk gave notice within the 90 days that the motion was deemed denied. Id. In that circumstance, the Hawai‘i Supreme Court stated:

> HRAP Rule 4(a)(3)'s words are clear. **To protect the right to appeal**, we conclude that the appeal deadline tolls until the "entry of an order disposing of the motion." We said it before. "[W]hen **a timely post-judgment tolling motion** is deemed denied, it does not trigger the thirty-day deadline for filing a notice of appeal until entry of the judgment or appealable order pursuant to HRAP Rules 4(a)(1) and 4(a)(3)." [Citing Sakuma].

Cole, 154 Hawai‘i at 31, 543 P.3d at 463 (emphasis added). The trial court's "failure to comply with HRAP Rule 4(a)(3) **does not undercut a party's right to appeal**." Id. (emphasis added). The focus in Cole was on a party's right to appeal in light of a timely filed **post-**judgment tolling motion under HRAP Rule 4(a)(3).

Most recently, another ruling construing HRAP Rule 4(a)(3) was handed down by the Hawai‘i Supreme court, discussing a thorough history of amendments to the rule. In Mālama, on 10/2/18 final judgment was entered in the second circuit court; on 10/17/18 a motion for bill of costs was filed; on 10/29/18 a Rule 60(b) motion for reconsideration was filed; on 1/25/19, the order denying the 60(b)(6) motion and granting costs was filed; and on 2/23/19 the notice of appeal was filed. Mālama, 157 Hawai‘i at 286-287, 576 P.3d at 799-800. After the ICA ruled it had no jurisdiction over the appeal of the 60(b) motion for reconsideration, the Hawai‘i Supreme Court reversed, stating that a 60(b) motion to reconsider is a tolling motion, it is not limited by the Rule 59(e) motion's 10 day filing requirement, and a "Rule 60(b) motion extends the time in

which to file a notice of appeal pursuant to HRAP Rule 4(a)(3), if the motion for reconsideration is filed within thirty days of the entry of judgment. Mālama, 157 Hawai‘i at 293-294, 576 P.3d at 806-807[1]. Pikor in this matter, failed to file his Rule 60(b) motion within 30 days of the final judgment, and therefore the motion does not qualify as a timely filed post-judgment motion. There would be no appellate jurisdiction, because any attempt to appeal is untimely in this case.

3. Timely Filed Motion was Not Post-Judgment and Jurisdiction was in District Court at the Time the District Court Ruled

The present case does not involve a post-judgment motion, the motion at issue was clearly filed pre-judgment, and was certainly decided before 90 days after the entry of final judgment. There was no confusion on when the time to file a notice of appeal would occur: the time to appeal was within 30 days after the entry of the final judgment and was not extended by a timely tolling post judgment motion. The focus of HRAP Rule 4 is to determine when the notice of appeal must be filed for there to be jurisdiction in the appellate court. It does not dictate when pre-judgment motions must be determined by the trial court, nor does it preclude determination of pre-judgment motions before the entry of the final judgment.

4. Even if the Timely Filed Motion was Considered a **Post-**Judgment Motion, it and the Decision Granting the Motion Would be Deemed Filed After Entry of the Final Judgment

The AOAO submits that the motion for attorneys' fees and costs was a pre-judgment motion, decided before the final judgment was entered, and therefore the 90 day limitation of HRAP Rule 4(a)(3) does not apply. Even if the motion for attorneys' fees was to be considered a

[1] There is a further amendment to HRAP Rule 4(a)(3), but it is not effective until January 1, 2027. *See*, https://www.courts.state.hi.us/wp-content/uploads/2026/07/2027_hrap4am_ada.pdf (amendment filed 7/15/26, effective 1/1/27, in an attempt to clarify the rule on post-judgment motions, the new HRAP Rule 4(a)(3)(F) defines post judgment motions for attorneys' fees and costs as follows: "(F) for attorney's fees or costs under HRCP Rule 54, if the HRCP Rule 54 motion for attorney's fees or costs is filed within 14 days after entry of the judgment or appealable order". This clearly excludes attorneys' fees motions in the district court from being considered a "post-judgment motion".

"post-judgment" motion, it was timely filed, and would be deemed to be filed immediately after the judgment was entered. Buscher v. Boning, 114 Hawai'i 202, 221, 159 P.3d 814, 833 (2007) (while Rule 4(a)(3) did not consider the situation when a motion for costs is filed before the entry of judgment, it held that "**we will deem such motion filed immediately after the judgment becomes final for the purpose of calculating the 90-day period**" (emphasis added)). The same would be said for the order granting the motion.

Pikor cites Ass'n of Apt. Owners of Nauru Tower v. Smith, No. CAAP-21-0000683, 2024 WL 4263425, 2024 Haw. App. LEXIS 419 (App. Sept. 23, 2024), in support of his position, yet failed to attach the non-published decision in violation of HRAP Rule 35(c). *See*, Dkt. 431 at pdf p. 5 (arguing the Nauru Tower case had "identical facts"). The case did not have identical facts to this case. In Nauru Tower, at p. ***1 (a true and correct printout of which is attached hereto as Exhibit "A"), the motion for attorneys' fees and costs was a **post**-judgment motion filed in circuit court, not district court (and the basis of the motion was not described in the non-published decision): on 6/10/21, final judgment was filed in the first circuit court; on 6/21/21, the motion for fees and costs was filed; and on 11/4/21 the order granting fees and costs was entered. The motion was filed **after** the entry of judgment and the decision on the motion was not entered within 90 days of the motion, but was entered more than four months after the motion was filed, and therefore the motion was deemed denied under the rules. Nauru Tower differs from this case where the statutory motion was decided in the district court before the entry of judgment, and did not extend the time to file the notice of appeal at all. Similarly, Cole does not help Pikor either because it too involved a motion filed after judgment, but was not a motion for fees and costs in the district court but was a motion for reconsideration in the circuit court. *See*, discussion of Cole, supra at p, 7. None of Pikor's cases involved a pre-judgment

statutory motion for attorneys' fees and costs filed in the district court, and therefore they are inapposite.

5. Conclusion

Based on the foregoing, the order granting attorneys' fees and costs is a valid order. Pikor's motion for reconsideration should be denied.

DATED: Honolulu, Hawai'i, August 31, 2026.

/s/ James R. Ferguson
JAMES R. FERGUSON
JODIE D. ROECA
Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

Exhibit “A”

155 Hawai‘i 90
Unpublished Disposition
Unpublished disposition. See HI R RAP Rule 35 before citing.
Intermediate Court of Appeals of Hawai‘i.

ASSOCIATION OF APARTMENT OWNERS OF NAURU TOWER, Plaintiff-Appellee,
v.
Dawn Carol SMITH, Defendant-Appellant

NO. CAAP-21-0000683
|
September 23, 2024

APPEAL FROM THE CIRCUIT COURT OF THE FIRST CIRCUIT (CASE NO. 1CCV-21-0000131)

Attorneys and Law Firms

On the briefs:

Dawn Smith, Self-represented Defendant-Appellant.

Sharon Paris, for Plaintiff-Appellee.

(By: Wadsworth, Presiding Judge, McCullen and Guidry, JJ.)

***91 **437 SUMMARY DISPOSITION ORDER**

*****1** Self-represented Defendant-Appellant Dawn Carol Smith (**Smith**) appeals from the (1) Final Judgment, entered on June 10, 2021, (2) Order Granting Plaintiff Association of Apartment Owners of Nauru Tower's [**the AOAO**] Motion for Summary Judgment, Filed April 7, 2021, (**Summary Judgment Order**) entered on June 8, 2021, and (3) Order Granting Plaintiff's Motion for Attorneys' Fees and Costs Filed on June 21, 2021 (**Attorneys' Fees Order**) entered on November 4, 2021, all entered by the Circuit Court of the First Circuit (**circuit court**).[1]

1 The Honorable Gary W.B. Chang presided.

On appeal, Smith raises four points of error: (1) "Erroneous Ruling of Eligibility Issue - Direct Contravention of § 501-101 Voluntary dealing with registered lands"; (2) "Court erred in Granting Attorney's Fees to prevailing party as ruling is erroneous"; (3) "Court erred in awarding attorney's fees more than 90 days after the filing of a post-judgment motion in contravention of [Hawai‘i Rules of Appellate Procedure (**HRAP**)] Rule 4(a)(3)"; and (4) "Ex Parte Order Filed with Forged Signature Voidable/Sanctionable."[2]

2 Various sections of Smith's opening brief, including the "statement of points on appeal," fail to comply with HRAP Rule 28(b). We nevertheless address Smith's contentions of error to the extent discernible, in the interest of affording "litigants the opportunity to have their cases heard on the merits, where possible." Marvin v. Pflueger, 127 Hawai‘i 490, 496, 280 P.3d 88, 94 (2012) (cleaned up).

Upon careful review of the record and relevant legal authorities, and having given due consideration to the arguments advanced and the issues raised by the parties, we resolve Smith's points of error as follows:

(1) Smith contends that the circuit court erred by granting the AOAO's motion for summary judgment. The circuit court granted summary judgment, concluding as a matter of law that

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Smith was not entitled to continue as a sitting member of the AOAO Board because,

> ... in order to qualify under 514B-107(a) to become a board member an individual must be an owner of a unit at the Nauru Tower condominium. In this case, [Smith] owned unit 1303 by virtue of a warranty deed that transferred ownership of that unit to her, and on November 6th, 2020, [Smith] transferred her ownership in apartment 1303 to a third party. That terminated her ownership in a unit at Nauru Tower and therefore she was no longer qualified to serve as a board member.
>
> So this court determines that because [Smith] was no longer qualified to sit as a board member after November 6th, 2020, when her title ceased, that she cannot serve as a member of the board.

"On appeal, the grant or denial of summary judgment is reviewed de novo." Ralston v. Yim, 129 Hawai‘i 46, 55, 292 P.3d 1276, 1285 (2013) (citations omitted). The court applies the following standard,

> [S]ummary judgment is appropriate if the pleadings, depositions, answers to interrogatories and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to judgment as a matter of law. A fact is material if proof of that fact would have the effect of establishing or refuting one of the essential elements of a cause of action or defense asserted by the parties. The evidence must be viewed in the light most favorable to the non-moving party. In other words, we must view all of the evidence and inferences drawn therefrom in the light most favorable to the party opposing the motion.

*****2** Id., at 55-56, 292 P.3d at 1285-86 (cleaned up).

The record reflects that the AOAO satisfied its initial burden of production through its declarations and attached exhibits, specifically Exhibit F of the motion for summary judgment, which was the deed by which Smith transferred title to her Nauru Tower condominium unit to a third party.[3] Id. at 60, 292 P.3d at 1290 ("a summary judgment movant may satisfy his or her initial burden of production by either (1) presenting evidence negating an element of the non-movant's claim, or (2) demonstrating that the nonmovant will be unable to carry his or her burden of proof at trial.").

3 Regarding Exhibit F, the circuit court noted,

> ... the deed that is attached to the motion as Exhibit F in which [Smith] transferred title to unit 1303 to a third party was not recorded until November 16th, 2020. However, in looking at the deed itself, page 2, it recites that the deed is dated November 6, 2020, and when we look at the notary, the grantor, [Smith] executed this document on November 6, 2020.
>
> ....
>
> The recording date only binds the rest of the world. But the parties to the apartment deed are bound when the document is fully executed, and it appears to have been fully executed on November 6, 2020.

The burden then shifted to Smith, and Smith did not meet her burden of establishing that there is a genuine question of material fact for trial. The only evidence in the record establishes that Smith signed and executed the deed on November 6, 2020, and that Smith therefore relinquished her ownership of her condominium unit on that day. Smith did not provide any legal authority in support of her contention that November 16, 2020, the date on which the deed was recorded by the Bureau

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of Conveyances, was the date on which title officially transferred. Smith does not provide any evidence to establish a genuine question as to her entitlement to remain a member of the AOAO Board after she executed the deed on November 6, 2020.

Smith argues, for the first time on appeal, that the circuit court erred by excluding a "Key Statute [Regarding] Land Court Ownership," namely Hawaii Revised Statutes (**HRS**) § 501-101 (2018), which "codifies the recording date as dispositive of ownership." "Legal issues not raised in the trial court are ordinarily deemed waived on appeal." Ass'n of Apartment Owners of Wailea Elua v. Wailea Resort Co., 100 Hawai‘i 97, 107, 58 P.3d 608, 618 (2002) (citations omitted). Smith's argument regarding the application of HRS § 501-101 is thus waived.

The circuit court did not err in granting summary judgment.

(2) Smith contends that the circuit court erred in granting attorneys' fees to the AOAO because, *inter alia*, the circuit court lacked jurisdiction to enter the Attorneys' Fees Order.[4] We conclude that Smith's contention has merit.

4 We resolve Smith's second and third points of error, relating to attorneys' fees, in section (2) herein.

Smith correctly notes that the circuit court entered its Attorneys' Fees Order more than 90 days after the AOAO filed its June 21, 2021 Motion for Attorneys' Fees and Costs. "Per HRAP Rule 4(a)(3) an order entered after 90 days 'shall be a nullity.'" Cole v. City and Cnty. of Honolulu, 154 Hawai‘i 28, 29, 543 P.3d 460, 461 (2024). HRAP Rule 4(a)(3) provides, in pertinent part, that

> ***3** The presiding court or agency in which [a post-judgment motion for, *inter alia*, attorney's fees] was filed shall dispose of any such post-judgment motion by entering an order upon the record within 90 days after the date the motion was filed. If the court or agency fails to enter an order on the record, then, within 5 days after the 90th day, the clerk of the relevant court or agency shall notify the parties that, by operation of this Rule, the post-judgment motion is denied and that any orders entered thereafter shall be a nullity.

The Hawai‘i Supreme Court has recognized that the language of these clauses is "plain," and "requires the court to enter [a] post-judgment order within 90 days after the party files the motion." Cole, 154 Hawai‘i at 31, 543 P.3d at 463.

Here, the record reflects that the AOAO's motion was deemed denied because the circuit court did not enter its Attorneys' Fees Order within 90 days of the AOAO's post-judgment fees motion, and the untimely filed Attorneys' Fees Order was therefore a "nullity." We vacate the circuit court's award of attorneys' fees.[5]

5 We note that, even though the circuit court's Attorneys' Fees Order was a nullity, Smith's appeal was nevertheless timely filed. Although "[c]ourts have no power to rule on a post-judgment motion after the 90-day period[,]" "[t]he court's belated action ... provides notice regarding the time to appeal[,]" and starts the appeal clock. Cole, 154 Hawai‘i at 32, 543 P.3d at 464.

(3) From what we are able to discern, Smith appears to contend that the Summary Judgment Order should be "voided, invalidated and

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vacated" because the circuit court stamped "Please Note Changes," and incorporated corresponding changes into that order, after she had approved it as to form. The record reflects Smith "approved as to form" the proposed Summary Judgment Order that was submitted to the circuit court on May 21, 2021. Smith contends that the subsequent addition of the "Please Note Changes" stamp "would appear to mean that [the circuit court] wanted all parties to be aware of said changes" and "may not have veered from the original Proposed Order, had [the circuit court] not been made to believe that [Smith] had seen it and signed it."

The circuit court has discretion to revise an order, such that the order is consistent with its decision. See Rules of the Circuit Courts of the State of Hawai‘i Rule 23(d) ("If a proposed judgment, decree, or order is consistent with the verdict of the jury or the decision of the court, the court shall cause the judgment, decree, or order to be entered forthwith."). A circuit court's modification of a proposed order that has been "approved as to form" does not void or invalidate the order, nor does it render the signature of the person who "approved as to form" a "forgery."

For the foregoing reasons, we affirm the circuit court's Order Granting Plaintiff Association of Apartment Owners of Nauru Tower's Motion for Summary Judgment and Final Judgment. We further vacate the Order Granting Plaintiff's Motion for Attorneys' Fees and Costs, and remand for further proceedings consistent with this summary disposition order.

All Citations

155 Hawai‘i 90, 556 P.3d 436 (Table), 2024 WL 4263425

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAI‘I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 CERTIFICATE OF SERVICE
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	
NIKODEM PIKOR, Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing was duly served by depositing the same in the United States Mail, postage prepaid, hand-delivery, or electronically through JEFS to the following at their last known address:

	U.S. Mail	Hand Delivery	JEFS
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DATED: Honolulu, Hawai‘i, August 31, 2026.

/s/ James R. Ferguson
JAMES R. FERGUSON
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Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS